OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Mayor's Relief Fund: Manildra's $10,000 and the untraced $11,000

Sent 14 August 2026 · To Cr Wilkins, Shoalhaven City Council · Response requested by 18 August 2026

13 August 2026

Mr Andrew Constance
Chief Executive Officer, Shoalhaven City Council

Councillor Peter Wilkins
Deputy Mayor, Shoalhaven City Council

Subject: The Mayor's Relief Fund accounts are to be received by email on Thursday. Before they are, there are twelve questions on the public record that the accounts do not answer.

Dear Mr Constance and Deputy Mayor Wilkins,

I am writing about item MR26.1, 2025/26 Mayor's Relief Fund Financial Reports, listed for the meeting of the Shoalhaven City Mayor's Relief Fund Committee on Thursday 20 August 2026, business paper ref 18447.

I should say at the outset what this letter is not. I am not alleging that any money is missing.

Every figure in the statements reconciles, and I have checked them.

I am not alleging impropriety by the Chairperson, by any councillor, by any officer, or by any donor.

Nor am I suggesting the recipient organisations are undeserving — Salt Care, Lyrebird Pre-School and Cullunghutti Aboriginal Child and Family Centre all do work this masthead has written about with respect.

What I am putting to you is narrower, and I think harder. This is not ratepayers' money. It is money the public gave, to a fund with deductible gift recipient endorsement, for the relief of people in necessitous circumstances after fire, flood, drought or other calamity. Donors are entitled to a clearer account of it than these two pages provide.

The four things that prompted this letter

One. Note 2 shows "funds from previous campaigns" moving from $70,064 to $75,188 — an increase of $5,124, which is precisely the interest the fund earned the previous year. On the face of the accounts, the disaster-relief money received no contributions and made no payments in 2025/26. It moved only by capitalised interest.
Two. The Giving Box reconciles exactly: $3,231 opening, plus $10,499 received, less $5,597 paid and $1,018 other, equals $7,115 closing. Which means every dollar that entered and

left this fund last year passed through the Christmas appeal.
Three. Note 1 records every dollar of “donations paid” going to organisations. The statements record no payment to any individual in necessitous circumstances in either year shown — while Council's own webpage continues to invite applications from residents and tradespeople whose homes, outbuildings, vehicles, equipment or tools have been damaged or destroyed.
Four. Donations received in 2025/26 were $10,499. On 25 November 2025 Council announced that the Manildra Group had donated $10,000 to the Giving Box appeal, covering 2025 and 2026. If both figures are right, the balance of donations from every other source in the Shoalhaven for the entire financial year was in the order of $499. The year before, total donations received were $100.

For the Chief Executive Officer

Under the Rules of the fund the Chief Executive Officer or nominee is Secretary of the Committee, so these are properly administrative questions.

1. The $11,000. The minutes of 21 August 2025 record the Chairperson advising that “in 2024 Manildra donated $11,000 specifically towards Christmas celebrations for the community.” That amount does not appear in the donations received line of either year in the current statements — 2024/25 records $100, and 2025/26 records $10,499 of which $10,000 is publicly attributed to a separate 2025 gift. In which financial year was the $11,000 received, into which account, and where does it appear in the fund's financial statements?

1. Was that donation the subject of a deed of gift, funding agreement, or any written record of its conditions? Was a deductible gift receipt issued, and for which financial year? Has it been acquitted against the purpose for which it was given?

1. Does the fund identify restricted or conditional gifts separately in its accounts? If not, how does the Committee satisfy itself that a gift given for a stated purpose has been applied to that purpose?

1. The $499. Can you confirm whether the Manildra donation of $10,000 announced on 25 November 2025 is included within the $10,499 shown as donations received in 2025/26? If it is, what was the total value of donations received from all other sources in that year, and in 2024/25?

1. “Other” expenses. Please itemise the $1,018 in 2025/26 and the $885 in 2024/25. In 2025/26 that is 15.4 per cent of the fund's total expenditure.

1. Applications from individuals. For each of 2023/24, 2024/25 and 2025/26: how many applications for assistance were received from individuals, how many were approved, how many refused, and what total amount was paid to individuals in each

year? If the answer is nil, when was the last payment made from this fund to an individual in necessitous circumstances, and what was it?

1. Is the online application form on Council's Mayoral Relief Fund page still live and monitored? Who assesses applications, against what criteria, and under what delegation?

1. Grants to organisations. Is there a written policy, with published criteria, governing how organisations are selected to receive money from the Mayor's Giving Box? Is there any application or expression-of-interest process? What record exists of the assessment that produced the 2025/26 allocations — Salt Care $4,597, Lyrebird Pre-School $500, Cullunghutti $500 — and of the decision not to fund Early Childhood Education Services & Training and Schools Online, both of which received $500 in 2024/25? If no such policy exists, will Council adopt one?

1. DGR compliance. The fund is endorsed as an Item 1 deductible gift recipient under Council's ABN 59 855 182 344. The Australian Taxation Office requires a necessitous circumstances fund to "exclusively, or at least chiefly, relieve persons who are in necessitous circumstances," and permits distributions to other organisations only where "those organisations provide care for persons in necessitous circumstances." What steps does Council take to satisfy itself that the fund's expenditure meets those conditions, and has Council obtained advice on whether Christmas gift distributions to pre-schools and a public school satisfy that test?

1. The $75,188. Please confirm whether "funds from previous campaigns" received any contributions or made any payments in 2024/25 or 2025/26, or whether the only movement was capitalised interest. What is Council's plan for that money? In February 2023 the Committee was told that approximately $70,000 had been accumulated before the 2019/20 bushfire campaign, and that $25,036.09 in residual Currowan funds would be transferred to the general balance after the retention period. What is the intended application of the consolidated balance?

1. "A Year to Thrive Together." That appeal was launched through this fund on 30 January 2023 with a tiered distribution plan contemplating more than $40,000. How much did it raise, how was it applied, and was it ever acquitted to the Committee or the public?

1. Preparation and review. Who prepares these financial statements, and are they subject to any external audit or review? Where are the fund's investments held, at what return, and under which investment policy?

For the Deputy Mayor

Deputy Mayor, you are one of thirteen councillors (and currently acting as the Mayor) who are members of this Committee by virtue of the terms of reference. At the last meeting, on

21 August 2025, four councillors attended and the item was carried by consent in a meeting that ran from 4:00pm to 4:06pm. This year the agenda gives the location as “Email Meeting.”

I make no criticism of anyone for that. Receiving an annual financial report is routine business and the Committee's time is not unlimited. But the accounts in front of you this week raise questions that a circulated email cannot ask, and I would ask you to consider four things:

A. Whether the item should be held over to a convened meeting — in person or by audio-visual link — so that the questions above can be put and answered on the record before the accounts are received.

B. Whether the Committee should ask staff to trace and report on the $11,000, and to identify restricted gifts separately in future statements.

C. Whether the Committee should adopt a written grants policy for the Mayor's Giving Box, with published criteria and an application process, consistent with the Office of Local Government's advice that councils giving financial assistance should have a policy covering application forms, assessment processes, transparent criteria and mechanisms to ensure funds are used as specified.

D. Whether the Committee should ask for a plan for the $75,188, including whether the fund should be actively promoted again, or whether the money should be applied through organisations that provide care to people in necessitous circumstances.

None of that requires anyone to have done anything wrong. All of it would leave the fund in better shape than it is in now.

On Manildra

I want to be direct about this, because it is the part most easily misread.

Manildra Group is a long-standing supporter of this appeal and of many causes in the Shoalhaven, and it is one of the region's largest private employers. There is nothing improper about a company donating to a mayoral Christmas appeal, and I do not suggest otherwise.

It is also the case that Shoalhaven Starches Pty Ltd gave an enforceable undertaking accepted by the Department of Planning, Housing and Infrastructure on 4 June 2025, under which it committed $25,000 to Shoalhaven City Council for a Bomaderry Creek project and $31,275 to Shoalhaven City Council for the Reid Park upgrade. The consent authority for that development is the State and not Council, and Council had no role in the approval, the breach or the undertaking. I say so plainly and will keep saying so.

The point is simply that where a single donor supplies effectively all of a public fund's income in a year, and where that donor has concurrent financial dealings with the council that administers the fund, the gift should be documented in writing rather than described in a verbal aside. A deed, a stated purpose, a separate line in the accounts, an acquittal. That protects the donor and the Chairperson equally, and its absence protects neither.

Timing

The item is listed for determination on Thursday 20 August 2026, under delegated authority.

I am therefore asking for a response by 5pm on Tuesday 18 August 2026 — before the accounts are received. I recognise that is short. If any question cannot be answered in that time, please say so and answer the rest; I would rather publish a partial answer promptly than wait for a complete one.

I will publish your answers in full and unedited, at whatever length you give them, and I will publish any correction to my own figures with the same prominence and my name attached to the error.

The standing offer also remains open: forty-five minutes, on the record, at a time that suits either or both of you.

Yours sincerely,

Steve Prothero
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